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CITY OF HAVERHILL

In Municipal Council October 1 2024

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Ordered:

CITY COUNCIL

RULES AND REGULATIONS FOR SPECIAL PERMITS

AMENDMENT AND REPLACEMENT OF RULES AND REGULATIONS FOR WHEN THE CITY COUNCIL SITS AS A SPECIAL PERMIT GRANTING AUTHORITY

BE IT ORDERED by the City Council of the City of Haverhill that following Rules and Regulations amend and replace the Rules and Regulations for Special Permits for instances when the City Council sits as a Special Permit Granting Authority that were accepted by the City Council on September 17, 2024.

**City of Haverhill, MA
CITY COUNCIL
Rules and Regulations for Special Permits**

Section 1: Purpose and Scope

1. **Purpose:** The purpose of these regulations is to establish a consistent process for the application, review, and approval of special permits within the City of Haverhill, ensuring that developments meet community standards and are in harmony with the public interest.
2. **Scope:** These regulations apply to all special permits required under the Zoning Ordinance or any other applicable city ordinance.

Section 2: Definitions

1. **Special Permit:** A discretionary approval granted by the designated permitting authority that allows a specific use or activity on a property, which is not allowed by right under the zoning ordinance but may be permitted under certain conditions.
2. **Special Permit Granting Authority: (CITY COUNCIL):** The board designated by the city's zoning ordinance to issue special permits,

Section 3: Application Process

1. **Pre-Application Conference:** Applicants are encouraged to meet with the SPGA and city planning staff before submitting a formal application to discuss the proposal, review applicable regulations, and identify potential issues.
2. **Application Submission:**
 - Applications must be submitted to the SPGA on forms provided by the city on its website cityofhaverhill.com.

- A complete application includes a narrative description of the proposed use, site plans, traffic studies (if applicable), environmental impact assessments, and any other required documentation as set forth on the application page.
- The application must address, specifically, each of the general Special Permit criteria under section 10.4.2 of the Ordinance as well as the specific special permit criteria of the section for which the permit is being applied (See section 4 below).
- The application must specifically cite to the section of the Ordinance under which the Special Permit is being applied.
- All applications must include the following:
 1. The application must be accompanied by a filing fee, as established by the City Council.
 2. The perimeter dimensions of the lot; Assessor's Map, lot and block numbers
 3. All existing and proposed buildings, structures, building setbacks, parking spaces, driveway openings, distance between buildings, plan view exterior measurements of individual buildings, driveways and service areas and open areas.
 4. Internal roads, sidewalks, and parking areas (width dimensions of paving and indication of number of parking spaces).
 5. All facilities for sewage, refuse, and other waste disposal and for surface water drainage.
 6. All proposed landscaping features, such as fences, walls, planting areas and walks on the lot and tract.
 7. Existing major natural features including streams, wetlands and all trees six inches or larger in caliper (caliper is girth of the tree at approximately waist height).
 8. Zoning, scale and North arrow (minimum scale of one inch equals 100 feet).
 9. Total site area in square footage and acres to area to be set aside as public open space, if appropriate.
 10. Percentage of lot coverage (including the percentage of lot covered by buildings) and percentage of open space, if appropriate.
 11. The proposed residential density in terms of dwelling units per acre and types of proposed commercial uses in terms of respective floor area, and recreation areas, and number of units proposed by type: number of one-bedroom units, two-bedroom unit, etc., if appropriate.
 12. Location sketch map (indicate surrounding streets to properties and any additional abutting lands owned by the applicant).
 13. Developer's (or his representative's) name, address and phone number.
 14. Any other information which include traffic, school, utilities and impact studies deemed necessary the City Council as special permit granting authority (SPGA) in order to adequately evaluate the scope and potential impacts of the proposed project.

- The SPGA retains the right to reject any application which is incomplete.

3. Public Notice:

- Upon receiving a complete application, the SPGA will schedule a public hearing and provide notice to abutters within 300 feet of the property, as well as publish the notice in a local newspaper at least 14 days prior to the hearing.
- The notice must include a brief description of the proposal, the location, and the time and place of the hearing.

Section 4: Review Criteria

The SPGA retains the right to reject as incomplete, any application which does not address the applicable Review Criteria.

General Criteria: General Special Permit Criteria

1. As required by the Special Permit criteria section of the Zoning Ordinance (Section 10.4.2), in order to grant a Special Permit, a Special Permit Granting Authority must make a written determination "that the proposed use or structure(s) shall not cause substantial detriment to the neighborhood or the City, taking into account the characteristics of the site and of the proposal in relation to that site." Under Section 10.4.2, "[i]n addition to any specific factors that may be set forth in th[e] [zoning] chapter, such determination shall include consideration of each of the following:
2. Community needs served by the proposal;
3. Traffic and pedestrian flow and safety, including parking and loading;
4. Adequacy of utilities and other public services;
5. Neighborhood character and social structures;
6. Impacts on the natural environment; and
7. Potential fiscal impact, including impact on City services, tax base, and employment."

Specific Findings Under Zoning Ordinance Section 10.4.2

8. - Community needs served by the proposal
9. *[Describe how community needs are/are not served by the proposed project, identifying specific information or documents which is/are included or missing from the materials submitted by the applicant]*
10. - Traffic and pedestrian flow and safety, including parking and loading
11. *[Describe how traffic and pedestrian flow and safety are/are not accounted for in the proposal, identifying specific information or documents which is/are included or missing from the materials submitted by the applicant, as well as expert reports, peer review, or reports from one or more departments]*
12. - Adequacy of utilities and other public services
13. *[Describe how the proposal provides/fails to provide adequate utilities and public services, identifying specific information or documents which is/are included or missing from the materials submitted by the applicant, as well as expert reports, peer review, or reports from one or more city departments]*
14. - Neighborhood character and social structures
15. *[Describe how the proposal is/is not consonant with neighborhood character and social structures]*
16. - Impacts on the natural environment

17. *[Describe the project's impact on the natural environment]*
18. - Potential fiscal impact, including impact on City services, tax base, and employment
19. *[Describe the project's fiscal impacts]*

Specific Criteria: Specific Findings Under Zoning Ordinance Section 6.3.3

20. *[These standards apply to special permit applications for development review under*
21. *Section 10.1.4 for multifamily, nonresidential or mixed use – omit this section if not applicable]*
22. Zoning Ordinance Section 6.3.4 provides exemptions for the following: (a) emergency responses performed by a private entity or a public agency and fire or burglar alarms; (b) municipal uses and structures, including schools; and (c) parades, fairs, or outdoor entertainment between the hours of 7:00 a.m. and 11:00 p.m. so long as the City Council has granted a permit for not more than 10 days. Here, the proposed use *[is/is not]* exempt for the following reasons:

[If the use is exempt, omit the remaining analysis]

23. The City Council makes the following findings with respect to the standards set forth in Zoning Ordinance Section 6.3.3 regarding lighting, noise, landscaping, stormwater management, site development standards, pedestrian and vehicular access, traffic management, aesthetics, utilities, and the City's general standards:
24. Lighting. *[Explain, with explicit reference to the Application, peer review, and other documents/evidence/materials in the record why the project does/does not meet the standards set forth in Section 6.3.3(1)]*
25. Noise. *[Explain, with explicit reference to the Application, peer review, and other documents/evidence/materials in the record why the project does/does not meet the standards set forth in Section 6.3.3(2)]*
26. Landscaping. *[Explain, with explicit reference to the Application, peer review, and other documents/evidence/materials in the record why the project does/does not meet the standards set forth in Section 6.3.3(3)]*
27. Stormwater Management. *[Explain, with explicit reference to the Application, peer review, and other documents/evidence/materials in the record why the project does/does not meet the standards set forth in Section 6.3.3(4)]*
28. Site Development Standards. *[Explain, with explicit reference to the Application, peer review, and other documents/evidence/materials in the record why the project does/does not meet the standards set forth in Section 6.3.3(5)]*
29. Pedestrian and Vehicular Access/Traffic Management. *[Explain, with explicit reference to the Application, peer review, and other documents/evidence/materials in the record why the project does/does not meet the standards set forth in Section 6.3.3(6)]*
30. Aesthetics. *[Explain, with explicit reference to the Application, peer review, and other documents/evidence/materials in the record why the project does/does not meet the standards set forth in Section 6.3.3(7)]*

31. Utilities/Security/Emergency Systems. *[Explain, with explicit reference to the Application, peer review, and other documents/evidence/materials in the record why the project does/does not meet the standards set forth in Section 6.3.3(8)]*
32. Other General Standards. *[Explain, with explicit reference to the Application, peer review, and other documents/evidence/materials in the record why the project does/does not meet the standards set forth in Section 6.3.3(9)]*

Section 5: Public Hearing and Decision

1. Public Hearing:

- The SPGA will hold a public hearing on the application, allowing the applicant, city officials, and the public to present evidence and testimony.
- The hearing may be continued to future dates as needed to gather additional information or allow for revisions to the proposal.

2. Decision:

- The SPGA must issue a written decision within 90 days of the close of the public hearing.
- The decision shall include findings of fact, conditions of approval (if any), and the rationale for the decision.
- The SPGA may impose conditions to mitigate any potential adverse impacts, ensure compliance with applicable regulations, or require performance bonds or other financial guarantees.

3. Appeals:

- Any party aggrieved by the decision of the SPGA may appeal to the Massachusetts Land Court or Superior Court within 20 days of the decision being filed with the City Clerk.

Section 6: Permit Expiration and Modification

1. Expiration:

- Special permits shall expire two years from the date of issuance unless substantial use or construction has commenced, or an extension is granted by the SPGA.
- Applicants may request an extension in writing, stating the reasons for the delay and the status of the project.

2. Modification:

- Any modification to a project granted a special permit requires review and approval by the SPGA. Minor modifications may be approved administratively, while significant changes require a new public hearing. If the administrative staff is unable to determine if a modification is minor or major, the SPGA retains the authority to so decide.

Section 7: Enforcement

1. Enforcement:

- The City's Building Inspector or other designated enforcement officer shall monitor compliance with the terms and conditions of the special permit.
- Violations may result in fines, orders to cease operations, or other enforcement actions as provided by law.

2. Cease and Desist:

- The SPGA may request the Building Inspector issue a cease and desist in order for the SPGA to determine what actions might be required to enforce the permit including possible ongoing cessation of work or issuance of fines in accordance with the Ordinance, following notice to the permit holder and a public hearing, if the permit holder fails to comply with the conditions of approval or engages in activities not authorized by the permit.

Section 8: Fees

1. Application Fee:

- Fees for special permit applications shall be set by the City Council and may vary based on the complexity and scale of the proposed use.

2. Consultant Fees:

- The SPGA may require the applicant to cover the cost of independent consultants needed to review technical aspects of the application (e.g., traffic, environmental impact) and shall require payment all in accordance with G.L. c. 44 sec 53G.

Section 9: Severability

1. Severability:

- If any section, clause, or provision of these regulations is found to be invalid or unenforceable by a court of law, such decision shall not affect the validity of the remaining portions of these regulations.

Final Notes

These rules and regulations are designed to provide a structured and transparent process for considering special permits in Haverhill, ensuring that all development meets the city's standards and supports the community's well-being.